

Jay Hind v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 January 2021 · WRIT-C No. 25817 of 2020 · WRIT - C No. - 25817 of 2020 · **Writ disposed; relegated to Clause 6.5; coercive measures stayed six weeks.**

HEADNOTE

A writ to quash a recovery citation and correct an electricity bill is disposed of, without a merits finding on alleged misuse or bill accuracy, by directing a time-bound representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a short stay of coercive recovery.

FACTUAL SUMMARY

Jay Hind sought quashing of a 25 February 2020 recovery citation and correction of his electricity bill. Counsel for the distribution licensee submitted that a premises check had found the petitioner using electricity for welding, though the connection was agricultural. He accepted that any grievance as to the accuracy of the bill in the citation could be raised before respondent No. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Required documents were supplied to the petitioner in court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute and recovery citation — Clause 6.5 representation

HOLDING

A writ seeking quash of a recovery citation and correction of an electricity bill is disposed of by relegating the consumer to a time-bound representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 (representation within two weeks; reasoned speaking order within four weeks after hearing), with coercive measures stayed for six weeks or until disposal of the representation, whichever is earlier, without deciding alleged misuse or bill accuracy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against recovery citation and for bill correction disposed by relegating the consumer to Clause 6.5 rather than examining the demand on merits. ¶ 1

6.5-representation-as-appropriate-remedy Court accepted the licensee's submission that a Clause 6.5 representation was the proper route for grievance as to bill accuracy shown in the recovery citation, and directed a speaking order thereon. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Dispute over the electricity bill underlying the 25.2.2020 recovery citation was left to the statutory Clause 6.5 representation before respondent No. 2. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 25.2.2020

Relegated to Clause 6.5; no merits finding. ¶ 1

NOT DECIDED — WHETHER USE OF AN AGRICULTURAL CONNECTION FOR WELDING JUSTIFIED THE DEMAND

Licensee's checking allegation was recorded but not adjudicated. ¶ 1

